

Justification for Exception to Fair Opportunity

“Source Selection Information – see FAR 2.101 and 3.104”

1. Identification of the agency and contracting activity

- a. **Federal Agency and Contracting Activity.**
Environmental Protection Agency
- b. **Sponsoring Organization.**
Office of Air and Radiation/Office of Atmospheric Protection (OAR/OAP) Clean Air and Power Division (CAPD)
- c. **Contracting Officer’s Representative (COR) Information.**
Morgan Riedel, EPA/OAR/OAP/CAPD
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- d. **Contracting Activity**
Kelly Lael, Contracting Officer NIH/OLAO/NITAAC
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2. Nature and/or description of the action being approved.

a. Acquisition purpose and objectives.

The purpose of this acquisition is to procure contract support to design, develop, and deploy the functions currently performed in the legacy CAMD Business System (CBS) and CAMD System Administrator (CSA) reporting applications into the existing Emissions and Allowance System for Energy (EASEY) framework. The CBS and CSA functions will be fully integrated into the EASEY environment which includes an Application Programming Interface or API based architecture hosted in cloud.gov. This work objective also includes the design, development and deployment of additional ECMPS2.0 functionality.

To ensure meeting the current project deadline, CAPD is proposing the following:

1. Increase the contractor’s hours from half-time to full-time for the Test Engineer/Systems Analyst who performs Automated Testing. This will increase the contractor’s capacity to set up automated tests while functional code is being written, resulting in addressing bugs earlier and completing development tasks quicker which accelerates the release cycle.
2. Increase the contractor’s hours from half-time to full-time for the Test Engineer/Systems Analyst who performs Requirements Analysis. This will increase the contractor’s capacity to discover and document requirements for CBS 2.0 and ECMPS, leading to better knowledge of what developers need to build which will assist in planning prior to Planning Increments (PIs) Events.

3. Add a half-time Test Engineer/Systems Analyst to perform Manual Testing. The Test Engineer/Systems Analyst who performs Requirements Analysis is currently also performing Manual Testing on this project. The addition of a half-time staff member to perform Manual Testing will free up the Test Engineer/System Analyst who performs Requirements Analysis to fully focus on requirements gathering and documentation for CBS 2.0 and ECMPS.
4. Add a half-time Developer/Engineer to the ECMPS Project. Currently, GDIT plans to have one full-time CBS 2.0 Developer/Engineer become half-time on both the CBS 2.0 task and the ECMPS task once GDIT starts ECMPS development. The addition of a half-time Developer/Engineer on ECMPS would ensure that the CBS 2.0 Developer/Engineer can fully focus on CBS 2.0 development, avoiding a decrease in CBS 2.0 development productivity.
5. Add a quarter-time to half-time Developer/Engineer to perform Database Administration for the Project. This will assist the Technical Lead in coordinating with the EPA Informatica Team and managing the migration of data into the cloud.gov environment. The additional of a quarter-time to half-time Developer/Engineer to perform Database Administrator will free up the Technical Lead to lead technical activities across CBS 2.0 and ECMPS.

b. Project background.

The Clean Air and Power Division (CAPD) of the Office of Air and Radiation/Office of Atmospheric Protection administers the Clean Air Allowance Trading Programs, including the Acid Rain Program (ARP), Cross-State Air Pollution Rule (CSAPR), and other related programs. These programs are designed to reduce stationary source pollutant emissions that can have harmful effects on human health and the environment. CAPD also supports the implementation of the Mercury and Air Toxics Standards (MATS) Rule, Greenhouse Gas Reporting Rule, and other state and federal emission reporting programs.

The CAPD programs are authorized by statute and regulation, including Title IV of the Clean Air Act and the following sections of Title 40 of the Code of Federal Regulations:

1. Acid Rain Permits Regulation – Part 72 Sections 72.1 to 72.96
2. Sulfur Dioxide Allowance System – Part 73 Sections 73.1 to 73.90
3. Sulfur Dioxide Opt-Ins – Part 74 Sections 74.1 to 74.61
4. Continuous Emission Monitoring – Part 75 Sections 75.1 to 75.75
5. Acid Rain Nitrogen Oxides Emission Reduction Program – Part 76 Sections 76.1 to 76.15
6. Excess Emissions – Part 77 Sections 77.1 to 77.6
7. Appeals Procedures – Part 78 Sections 78.1 to 78.20
8. CSAPR NO_x and SO₂ Trading Programs and Texas SO₂ Trading Programs – Part 97 Sections 97.1 to 97.1035
9. National Emission Standards for Hazardous Air Pollutants for Source Categories (MATS Program) – Part 63 Sections 63.1 to 63.12099
10. Greenhouse Gas Reporting Program – Part 98 Sections 98.40 to 98.48

To learn more about CAPD programs, please visit www.epa.gov/airmarkets.

3. Description of the supplies or services required to meet the agency's needs (including the estimated value).

a. Project title.

EASEY Phase 2 Re-engineering of CBS/CSA/ECMPS2.0

b. Project description.

EASEY assists users required to comply with, enforce, or understand regulatory air programs and progress. EASEY is an easily accessible, intuitive, and adaptable system that cost-

effectively and securely collects and disseminates high quality data. The EASEY system empowers its users with transparent data to hold industry and government accountable. Development is required for the following:

1. **A re-engineered application to replace the existing functionalities of the CAMD Business System (CBS) and CAMD System Administrator (CSA) reporting applications,** owned entirely by CAMD, and incorporated into the existing EASEY environment. The product will provide necessary stakeholders access to enter programmatic information to comply with relevant regulatory programs. The product will also provide CAMD staff the ability to perform administrative programmatic functions. This workstream will constitute the majority of time and effort spent under this contract. Generally, CAMD staff, along with existing contractors, will work to provide any necessary support for this project. Specifically, CAMD expects to supply the user research solution for this workstream. CAMD also already has developed a robust set of requirements for this workstream developed through user research with industry and EPA.

2. **Additional functionality for the ECMPS application currently in the EASEY environment. The design, development, and deployment of additional ECMPS functionality** includes the development of the Business Rules Engine (BRE), the State Data Portal and Electronic Notifications.

- a. Add BRE component to supplement the existing ECMPS check engine. The development and implementation of BRE will allow for the incorporation of existing checks and future expansion of additional quality assurance checks.
- b. Add functionality targeted for State and Local users that will provide reports, data queries, reporting notifications and allow them to review Part 75 and ECMPS submitted data.
- c. Build a component that will allow users to submit Part 75 Notifications electronically which are currently being submitted in hard copy.

- **Requirement type.**

- ☐ Research & development (R&D)
- ☐ R & D support services
- ☐ Support services (non-R&D)
- ☐ Supplies/equipment
- ☒ Information technology (IT)
- ☐ Construction
- ☐ Architect-engineer (A & E) services
- ☐ Design-build
- ☐ Other (specify):

- **Type of action.**

- ☐ New requirement

☐ Follow-on

X Other (specify): FAR 16.505(b)(2)(B) Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

• **Proposed contract/order type.**

☐ Firm-fixed-price

☐ Other fixed-price (specify, e.g., fixed-price award-fee, fixed-price incentive-fee): _____

☐ Cost-plus-fixed-fee

☐ Other cost reimbursement (specify, e.g., cost-plus-award-fee, cost-plus-incentive-fee): _____

☐ Time and materials

☐ Indefinite delivery (specify whether indefinite quantity, definite quantity, or requirements): _____

X Other (specify): Labor hours

☐ Completion Form

☐ Term form

• **Acquisition identification number.** IAA with NITAAC

c. Total estimated dollar value and performance/delivery period.

Summary POP: Modification date – 1/22/2025			
Period of Performance	Start Date	End Date	Total:
Adding to option period 1	Estimated 1/22/2025	1/21/2026	
Total: \$			

4. Identification of the exception to fair opportunity. The supporting rationale, including a demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the exception cited.

a. Acquisition Authority

FAR 16.505(b)(2)(B) Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

b. Demonstration of the proposed contractor(s) unique qualifications to provide the required supply or service.

i. Name and address of the proposed contractor(s).

General Dynamics Information Technology (GDIT)

3150 FAIRVIEW PARK DRIVE

SUITE 100

FALLS CHURCH VA 220424504

ii. Nature of the acquisition and proposed unique qualifications of the contractor(s).

In accordance with FAR 10.002(b)(2)(i) and FAR 10.002(c)(2)(ii) market research was conducted using knowledge gathering and review of the NITAAC GWAC contract holders. EPA has a current task order with GDIT. The additional work requires the same labor categories that are in the task order. The EPA has policy that requires all personnel who have systems access to be

American citizens (tier 4 clearance). GDIT has the staff and its technical solution which has been vetted through source selection procedures. These already approved and cleared contractor support staff would be doing the majority of the additional work. GDIT support staff already have a working knowledge of the project and the requisite skill set unique to this regulatory supporting requirement as well as experience from the base period of performance. To solicit and compete this work amongst other contract holders would be a duplication of effort. If the government could find available labor category staff who could start on day one the government would be in the position of managing two contracts for the same or similar work. In today's highly competitive information technology market it is difficult to find these developmental labor category skill sets with the required clearance. Because of these unique qualifications, only this contractor can navigate the technical solution within the EPA infrastructure and provide labor category support that is compatible with the existing EPA OAR EASEY Phase 2 project.

5. Determination by the Contracting Officer that the Anticipated Cost to be Fair and Reasonable.

The Office of Information Technology calculated the IGCE based on historical pricing. The increased work will be added to the task order. This GWAC has established rates that have been determined to be fair and reasonable. The contracting officer will compare these rates to similar task orders with similar rates for fair and reasonable pricing. The IGCE provides the detailed price estimate to reflect the labor hour pricing for the contract support needed to complete this new work. NITAAC is designated as a federal Executive Agent authorized by OMB to administer three GWACs for Information Technology. These GWACs are best-in-class and the labor rates and mix will be evaluated for technical sufficiency and anomalies.

6. Any other facts Supporting the Justification.

The current task order will be used to perform additional work for the EASEY system. To solicit this new work outside of this task order could result in a duplication of effort in having more contractors needing access to the same parts of the systems within the EPA. It would also require GDIT to work alongside other contractors on the same applications. All of this could potentially delay the agency's schedule to meet deadlines. To recompile this work would be an inefficient way for the government to operate.

7. Statement of the actions, if any, the agency may take to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made.

EPA estimates the next award will be for operations, maintenance and potentially enhancements. This work is for development so it is not anticipated EPA will need this work for these requirements in the future. EPA will also continue to assess the market for better solutions to meet future requirements needs.

8. Program Office Certification.

This is to certify that the portions of this justification that have been developed by the undersigned program office personnel, including supporting information and/or data verifying the Government's minimum needs, schedule requirements and other rationale for other than full and open competition, are accurate and complete.

Official	Name & Title	Signature	Date
Project Officer	Morgan Riedel Project Officer		
Head of the Sponsoring Program Office	Jason Kuhns		

9. Contracting Officer Certification.

This is to certify that the justification for the proposed acquisition has been reviewed and that to the best of my knowledge and belief the information and/or data provided to support the rationale and recommendation for approval is accurate and complete.

Official	Name & Title	Signature	Date
Contracting Officer	Kelly Lael		